

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: July 7, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Cruz vs. Lomeli 30-2024-01427526	<u>Motion to Set Aside</u> Defendants Isis Lomeli's and Gustavo Lomeli's Motion to Set Aside Default is DENIED as unnecessary and moot <u>Pending Motion</u> Defendants Isis Lomeli and Gustavo Lomeli move "for order vacating and setting aside the default judgment entered in this action . . . and for leave to file the attached proposed answer demurrer". (Notice of Mot. and Mot. to Set Aside Default at p. 1.) <u>Standard to Set Aside Entry of Default or Default Judgment</u> The Civil Procedure Code grants the court discretion to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) However, the court records show that no default has been entered against Defendant Isis Lomeli or Defendant Gustavo Lomeli, nor has any default judgment been issued against either of them. Therefore, Defendants do not need to set aside the any entry of default or default judgment. Defendants may file and serve their demurrer, answer, or other responsive pleading at any time, without further leave to the court. In addition, the court has ordered Plaintiff Patricia Cruz to pay sanctions in the amount of \$500 to the court by May 10, 2026. (See ROA #71.) Although Plaintiff has attempted to dismiss the entire case, the case cannot be dismissed until the sanctions are paid. (See ROA #87.) Therefore, the court will deny the motion as moot and unnecessary. The court clerk shall give notice of this ruling.
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2	Kwak vs. Progeny Psychiatric Clinic 30-2025-01482453	<u>Demurrer</u> Plaintiff Deborah Kwak's Demurrer is OVERRULED. <u>Pending Motion</u> Plaintiff Deborah Kwak demurs to "the First, Second, Third and Fourth Causes of Action in the Demurrer and Motion to Strike." (Pltf. Dem.; Mem. of P.s&A.s at p. 2:9-10.) <u>Standard for Demurrer</u> Civil Procedure Code section 430.10 provides that: The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer . . . to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading. (b) The person who filed the pleading does not have the legal capacity to sue. (c) There is another action pending between the same parties on the same cause of action. (d) There is a defect or misjoinder of parties. (e) The pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible. (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the

		contract is written, is oral, or is implied by conduct. (h) No certificate was filed as required by Section 411.35. (Code Civ. Proc., § 430.10.) In addition, Civil Procedure Code section 430.20 states that: A party against whom an answer has been filed may object, by demurrer . . . to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense. (b) The answer is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible. (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral. (Code Civ. Proc., § 430.20.) Here, Plaintiff demurs to "the First, Second, Third and Fourth Causes of Action in the Demurrer and Motion to Strike." (Pltf. Dem.; Mem. of P.s&A.s at p. 2:9-10.) However, demurrer may be asserted against a complaint, cross-complaint, or answer. Plaintiff points to no authority that would allow her to demur to another demurrer or a motion to strike. Further, the Defendant Progeny Psychiatric Clinic's demurrer and motion to strike do not contain any causes of action against Plaintiff. In fact, the court record does not show that Defendant has asserted any causes of action against the Plaintiff in this action. In her demurrer, Plaintiff also contends that there is a dispute over medical records and that Defendant cannot request an injunction.
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		However, as Defendant notes, there has been no request for an injunction by Defendant, and any dispute regarding the production of records would not be resolved by way of a demurrer. A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) To the extent this demurrer serves as an opposition to Defendant's demurrer and motion to strike, the court has already considered it in ruling on those matters. (See ROA #47, #53.) Therefore, the court will overrule the demurrer in its entirety. Defendant shall give notice of this ruling.
3	William N. Langstaff Professional Dental Corporation vs. Swope 30-2024-01439562	<u>Motion to Continue Action After Party's Death</u> Toby Herscovitz-Langstaff's Motion to Continue Pending Action by Decedent's Representative is GRANTED. Toby Herscovitz-Langstaff shall continue this action in the place of Plaintiff William N. Langstaff DDS, as his successor in interest. <u>Pending Motion</u> Toby Herscovitz-Langstaff moves for an order allowing this action to be continued by her in the place of Plaintiff William N. Langstaff DDS upon his passing. <u>Standard to Continue Action After Party's Death</u> Civil Procedure Code section 377.20 provides that "[e]xcept as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person's death, but survives subject to the applicable limitations period." (Code Civ. Proc., § 377.20, subd. (a).) A cause of action that survives the death of a plaintiff passes to "the decedent's successor in interest." (Code Civ. Proc., § 377.30.)

		"Decedent's successor-in-interest" means "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.) The Civil Procedure Code states that a motion may be made to allow a cause of action to be continued after the plaintiff's death: On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., § 377.31.) The Civil Procedure Code also requires that "[t]he person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest" must execute and file an affidavit or declaration that contains seven statements, including a statement that "[t]he affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding" and that "[n]o other person has a superior right . . . to be substituted for the decedent in the pending action or proceeding." (Code Civ. Proc., § 377.32, subd. (a).) The seven statements that must included in the affidavit or declaration are: (1) The decedent's name. (2) The date and place of the decedent's death. (3) "No proceeding is now pending in California for administration of the decedent's estate." (4) If the decedent's estate was administered, a copy of the final order showing the distribution of the
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		decedent's cause of action to the successor in interest. (5) Either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding." (B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding." (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." (7) "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct." (Code Civ. Proc. § 377.32, subds. (a)(1)-(a)(7).) Here, Toby Herscovitz-Langstaff provides a declaration identifying the deceased as Plaintiff William N. Langstaff DDS, and stating that he died on January 2, 2026 in Santa Ana, California. (Decl. of Toby L. Herscovitz-Langstaff Pursuant to Section 377.32 of the Code of Civ. Proc. (Herscovitz-Langstaff Decl.), ¶ 2.) She also provides a copy of the death certificate of Plaintiff William N. Langstaff DDS. (See <i>id.</i>, ¶ 6, Exh. A.) She states that she is the surviving spouse of Plaintiff William N. Langstaff DDS; that she is his successor in interest, as defined in Civil Procedure Code section 377.11; and that she succeeds to his interest in this action. (See <i>id.</i>, ¶ 4.)
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		Herscovitz-Langstaff also declares that no proceeding is now pending in the State of California for administration of the Estate of William N. Langstaff. (See <i>id.</i>, ¶ 3.) She also states that no other person has a superior right to commence this action or to be substituted for Plaintiff William N. Langstaff, DDS in in this action. (See <i>id.</i>, ¶ 5). Finally, Herscovitz-Langstaff declares under penalty of perjury under the laws of the State of California that the above statements are true and correct. ((See <i>id.</i> at p. 2.) Here, Langstaff-Herscovitz has complied with the requirements of Section 377.32. Further, no opposition or response to the motion has been filed. Thus, any arguments regarding the motion have been waived. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the court will grant the motion Successor in Interest Toby Herscovitz-Langstaff shall give notice of this ruling.
4	Doe vs. Jean Reno, LLC 30-2025-01505591	<u>Motion to Be Relieved as Counsel</u> Counsel Matt D. Zumstein’s and Shaida Shahinfar’s Motion to Be Relieved as Counsel For Defendant Jean Reno, LLC dba Glyph Salon is taken OFF CALENDAR pursuant to Defendant Jean Reno LLC dba Glyph Salon’s Notice of Withdrawal of Motion to Be Relieved as Counsel filed on June 2, 2026 (ROA #72).
5	Knoll vs. Colbert	<u>Motions to Be Relieved as Counsel</u>

	30-2023-01359863	Counsel William J. Brown, Jr.'s and Matthew K. Wegner's Motion to Be Relieved as Counsel for Plaintiff PHA Professional Services, Inc. is GRANTED. Counsel William J. Brown, Jr.'s and Matthew K. Wegner's Motion to Be Relieved as Counsel for Plaintiff SC Equipment Company, LLC is GRANTED. Counsel William J. Brown, Jr. and Matthew K. Wegner are ORDERED to submit to this court a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly completed, within 10 days of this ruling. Within 15 days of receiving the signed Form MC-053 back from the court, Counsel William J. Brown, Jr. and Matthew K. Wegner are ORDERED to serve Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC with the signed Form MC-053, notice of the Order to Show Cause hearing set forth below, and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel William J. Brown, Jr. and Matthew K. Wegner shall be relieved as counsel of record for Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC effective upon the filing of a proof of service showing timely service of the signed Form MC-053, notice of the Order to Show Cause hearing, and notice of this ruling. The Court SETS a hearing on an Order to Show Cause re: Dismissing Plaintiff PHA Professional Services, Inc. and/or Plaintiff SC Equipment Company, LLC from the Complaint for Failure to Retain Counsel on October 15, 2026 at 10:00 am in Department N15. <u>Pending Motion</u> Counsel William J. Brown, Jr. and Matthew K. Wegner (Counsel) move to be relieved as counsel for Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the
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		order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely
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		demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (<i>Ibid.</i>) If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests," (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding". (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by electronic mail at the client's last known address and confirming within the last 30 days that the address is the client's current address.
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		Counsel also has declared a justifiable reason to be relieved as counsel — that the clients agreed to obtain replacement counsel but have failed to do so. In addition, there are no substantive hearings on calendar and the matter has been settled. (See ROA #408.) The next hearing in this matter is on an Order to Show Cause re: Dismissal Settled Case, which is set more than 3 months from now, on October 15, 2026. (See ROA #411.) Thus, Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC will have sufficient time to find new counsel and will not be unduly prejudiced in their ability to prepare for and try the case. In addition, no opposition has been filed setting forth prejudice to Plaintiff PHA Professional Services, Inc.; Plaintiff SC Equipment Company, LLC; or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. However, Plaintiff PHA Professional Services, Inc. and Plaintiff SC Equipment Company, LLC are corporations, limited liability companies, or other artificial legal entities that cannot represent themselves and must retain counsel to act on their behalf in court. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 fn.5; <i>Rogers v. Sonoma County Municipal Court</i> (1988) 197 Cal.App.3d 1314, 1318.) While the ban on self-represented artificial legal entities does not prevent the court from granting the motion to withdraw, it does place pressure on Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC to obtain new counsel or risk forfeiting important rights through non-representation, such as dismissal of the action. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318; <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.)
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		Therefore, it is incumbent upon the court and Counsel to advise the Plaintiff PHA Professional Services, Inc.; Plaintiff SC Equipment Company, LLC; or their representatives of the necessity of obtaining representation and to ensure that they obtain representation. (See <i>Rogers v. Sonoma County Municipal Court</i>, <i>supra</i>, 197 Cal.App.3d at p. 1318.) The court will issue an order to show cause regarding dismissing Plaintiff PHA Professional Services, Inc. and/or Plaintiff SC Equipment Company, LLC from the Complaint, and will order that Counsel serve Plaintiffs PHA Professional Services, Inc. and SC Equipment Company, LLC with the order relieving counsel, notice of the order to show cause re: dismissing the plaintiffs for failure to retain counsel, and notice of this ruling. Counsel shall give notice of this ruling in the manner ordered by the court.
6	Habibi vs. Yang-Davies 30-2025-01471995	<u>Motion to Quash</u> Defendant Brian Davies’ Motion to Quash Proof of Service of Summons is GRANTED. <u>Pending Motion</u> Defendant Brian Davies moves to quash service of process of the summons in in this action. <u>Standard to Quash Service of Process</u> A court lacks personal jurisdiction over a defendant if there has not been proper service of process upon that defendant. (See Code Civ. Proc., § 410.50 [“A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served.”]; <i>Ellard v. Conway</i> (2001) 94 Cal.App.4th 540, 544 [compliance with statutory procedures for service of process is essential for court to establish personal jurisdiction over defendant].) Therefore, “[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for

		one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. . . .” (Civ. Proc. Code, § 418.10, subd. (a); see <i>Board of Supervisors v. Superior Court</i> (1994) 23 Cal.App.4th 830, 855, fn. 4.) Generally, “once a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant.” (<i>Bolkiah v. Superior Court</i> (1999) 74 Cal.App.4th 984, 991; see also <i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413 [same].) However, this burden shifts when a properly executed proof of service has been filed. “The return of a [registered] process server [] upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” (Evid. Code, § 647; see <i>Floveyor Int’l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390 [“Evidence Code section 647 provides that a registered process server’s declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration.”].) In this case, however, the Proof of Service attests that Defendant Brian Davies was served with the Summons but not with the Complaint. (See ROA #21: see also Def. Brian Davies Decl. Regarding False Proof of Service (Davies Decl.), ¶ 5.) Civil Procedure Code section 415.10 states that “[a] summons may be served by personal delivery of a copy of the summons <i>and of the complaint</i> to the person to be served.” (Code Civ. Proc., § 415.10, italics original.) Accordingly, “[a] copy of the complaint must be served with the summons” and “when a summons was served without a copy of the complaint the court was without jurisdiction.” (<i>McGinn v. Rees</i> (1916) 33 Cal.App. 291, 293.) Plaintiff contends that “[t]he process server, Hossain Hossaini, properly served the Summons and Complaint exactly as explained in the Proof of Service” and “[a]ll required documents were
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		properly served to the Defendant.” (Opp’n to Mot. to Quash at p. 2.) However, Plaintiff lacks personal knowledge and foundation to make these statements because service was effectuated by Hossain Hossaini and not Plaintiff. Accordingly, service of process was not completed as required by statute in this case and the court must grant the motion to quash. <u>Demurrer</u> Defendant Brian Davies’ Demurrer to Complaint is taken OFF CALENDAR as moot. <u>Pending Motion</u> Defendant Brian Davies’ demurs to the Complaint filed by Plaintiff Ghulam Reza Habibi. <u>Standard for Demurrer</u> “The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer . . . to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading. (b) The person who filed the pleading does not have the legal capacity to sue. (c) There is another action pending between the same parties on the same cause of action. (d) There is a defect or misjoinder of parties. (e) The pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.
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		(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct. (h) No certificate was filed as required by Section 411.35." (Code Civ. Proc., § 430.10.) In this case, the court has quashed service of process of the summons. Therefore, Defendant Brian Davies is not required to respond to the Complaint. As a result, the Defendant Brian Davies' demurrer to the Complaint is moot. (See <i>McClatchy v. Coblentz, Patch, Duffy & Bass, LLP</i> (2016) 247 Cal.App.4th 368, 375 [trial court may dismiss demurrer as moot after granting motion to quash].) Defendant Brian Davies shall give notice of this ruling.
7	Singh vs. Montano 30-2024-01403527	<u>Motion for Sanctions</u> Plaintiff Yashdeep Singh's Motion for Discovery Sanctions; Request for Terminating Sanctions or in the Alternative for Order Compelling Deponent Mary Montano to Attend and Testify at Deposition and Monetary Sanctions in the Amount of \$5,254.50 is GRANTED in part and CONTINUED in part to August 17, 2026 at 10:30 a.m. in Department N15. Defendant Mary Montano is ORDERED to appear for deposition at a mutually agreeable date and time, and in the manner specified in the Plaintiff's Fifth Notice of Deposition of Mary Montano, within 21 days of this ruling. No later than August 12, 2026, Plaintiff Yashdeep Singh and Defendant Mary Montano shall file and serve a declaration stating under penalty of perjury whether Defendant Mary Montano has appeared for her deposition and if she has not, the reasons for her failure to do so. Defendant Mary Montano is ORDERED to pay to

		Plaintiff Yashdeep Singh sanctions of reasonable attorney's fees in the amount of \$5,254.50 within 21 days of this ruling. <u>Pending Motion</u> Plaintiff Yashdeep Singh moves for monetary sanctions and terminating sanctions against Defendant Mary Montano and for monetary sanctions against Defendant's former Counsel Kevin A. Spainhour and Defendant's current counsel John R. Ramirez. In the alternative, Plaintiff requests evidentiary sanctions against Defendant or that Defendant be ordered to appear for her deposition. <u>Standard for Non-Monetary Sanctions</u> The trial court has expansive authority over discovery issues. (<i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 596.) This authority includes the power to impose monetary, issue, evidence, terminating, or contempt sanctions against any person engaging in any misuse of the discovery process. (See Code Civ. Proc., § 2023.030, subd.s (a)-(e).) Misuse of the discovery process includes, but is not limited to, using a discovery method in a manner that does not comply with its specified procedures; employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden; failing to submit or to respond to an authorized method of discovery; and disobeying a court order to provide discovery. (See Code Civ. Proc., §§ 2023.010, 2030.300, subd. (e) [interrogatories], 2031.310, subd. (i) [requests for production of documents], 2033.290, subd. (e) [requests for admissions].) "The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses." (Code Civ. Proc., § 2023.030, subd.
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		(b); see also <i>NewLife Sciences, LLC v. Weinstock</i> (2011) 197 Cal.App.4th 676, 686-687.) In addition, “[t]he court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.” (Code Civ. Proc., § 2023.030, subd. (c); see also <i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559. Terminating sanctions are one of the most severe forms of sanctions and are imposed by: (1) striking out the pleadings, or parts of the pleadings, of any party engaging in the misuse of the discovery process, (2) staying further proceedings by that party until an order for discovery is obeyed, (3) dismissing the action, or any part of the action, or (4) rendering judgment by default against that party. (Code Civ. Proc., § 2023.030, subd. (d).) “The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” (<i>Los Defensores, Inc. v. Gomez</i> (2014) 223 Cal.App.4th 377, 390, quoting <i>Lang v. Hochman</i> (2000) 77 Cal.App.4th 1225, 1246.) In order to impose issue, evidence, or terminating sanctions, the party subject to more serious sanctions must have failed to comply with previously issued court orders and the failure must be willful. (See <i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559 [“[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.”]; see also <i>Calvert Fires Ins. Co. v. Cropper</i> (1983) 141 Cal.App.3d 901, 904; <i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496; <i>Vallbona v. Springer</i> (1996) 43 Cal.App.4th 1525, 1545.) However, “[s]ome courts have held that the more serious sanctions may be imposed . . . even where no specific order has been violated, but those
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		cases have involved repeated and willful refusals to permit discovery or produce documents over a lengthy period of time which resulted in evidence becoming unavailable." (<i>Maldonado v. Superior Court</i> (2002) 94 Cal.App.4th 1390, 1399.) As the Court of Appeal has explained: T]he courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly. A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party's fundamental right to a trial, thus implicating due process rights. The trial court should select a sanction that is "tailor[ed] . . . to the harm caused by the withheld discovery." (<i>Lopez v. Watchtower Bible and Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 604, citations omitted, quoting <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) "The discovery statutes thus 'evinced an incremental approach to discovery sanctions, starting with <i>monetary</i> sanctions and <i>ending</i> with the ultimate sanction of termination. Although in extreme cases a court has the authority to order a terminating sanction as a first measure, a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective." (<i>Lopez v. Watchtower Bible and Tract Society of New York, Inc.</i>, <i>supra</i>, 246 Cal.App.4th at pp. 604-605, quoting <i>Doppes v. Bentley Motors, Inc.</i>, <i>supra</i>, 174 Cal.App.4th at p. 992, italics original; see also <i>Los Defensores, Inc. v. Gomez</i>, <i>supra</i>, 223 Cal.App.4th at p. 390 ["[A] decision to order terminating sanctions should not be made lightly."].) "The purpose of discovery sanctions 'is not to provide a weapon for punishment, forfeiture and the avoidance of a trial on the merits' but to prevent abuse of the discovery process and correct the problem presented." (<i>Parker v. Wolters Kluwer U.S., Inc.</i> (2007) 149 Cal.App.4th 285, 301, citations omitted, quoting <i>Caryl Richards Inc. v. Superior Court</i> (1961) 188 Cal.App.2d 300, 303; see <i>In re Marriage of Chakko</i> (2004) 115
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		Cal.App.4th 104, 109 ["In exercising its broad discretion to sanction discovery abuses, the trial court may impose any sanction authorized by statute that will enable the party seeking discovery to obtain the objects of the discovery sought."].) Thus, "[a] discovery sanction may not place the party seeking discovery in a better position than it would have been in if the desired discovery had been provided and had been favorable." (<i>Rail Services of America v. State Compensation Ins. Fund</i> (2003) 110 Cal.App.4th 323, 332.) In addition, "[d]iscovery sanctions 'should be appropriate to the dereliction, and should not exceed that which is required to protect the interest of the party entitled to but denied discovery.'" (<i>Doppes v. Bentley Motors, Inc.</i>, <i>supra</i>, 174 Cal.App.4th at p. 992, quoting <i>Laguna Autobody v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 487.) For example, terminating sanctions are warranted where a party repeatedly failed to respond to discovery responses for nearly one year, and disregarded two court orders, including one order warning that terminating sanctions would be the next step. (<i>Jerry's Shell v. Equilon Enterprises, LLC</i> (2005) 134 Cal.App.4th 1058, 1069.) <u>Discovery Violations</u> Here, Plaintiff has presented evidence that Plaintiff's Counsel made several attempts to schedule the deposition of Defendant on mutually agreeable dates and noticed the deposition of Defendant on three separate occasions. (See Decl. of Steve Lopez (Lopez Decl.), ¶¶ 8-14, 16-19, Exh.s 2-7, 9-11.) However, Defendant failed to appear at any of the noticed depositions. (See <i>id.</i>, ¶¶ 15, 20-21, Exh.s 8, 15.) Plaintiff also submitted evidence that he then served Defendant with a 4th notice of deposition, setting the deposition for the mutually agreed upon date of February 13, 2026.Exh.(See <i>id.</i>, ¶ 22, Exh. 16.)
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		However, one day prior to the deposition date Defendant's counsel unilaterally canceled the deposition. (See <i>id.</i>, ¶ 23, Exh. 17.) Plaintiff presented evidence that he offered to reschedule the deposition and proposed alternative dates, but that Defendant did not respond. (See <i>id.</i>, ¶¶ 23-24, Exh.s 17-18.) Plaintiff then served a 5th notice of deposition, setting the deposition for March 23, 2026. (See <i>id.</i>, ¶ 24, Exh. 18.) Plaintiff submitted evidence that Defendant continued not to respond, did not serve an objection, did not file a protective order, did not propose alternative dates, and did not appear for her deposition on March 23, 2026. (See <i>id.</i>, ¶¶ 25-26, Exh. 19.) While Defendant argues that terminating sanctions should not be granted, she does not dispute that she repeatedly failed to appear at her noticed deposition after she had not objected to the deposition date or had agreed to the deposition date. Defendant's conduct with respect to her deposition constitutes a misuse of the discovery process that has substantially prejudiced Plaintiff's ability to prepare for trial. Nor is this the first time that the court has found Defendant to have abused the discovery process. This court previously ruled that Defendant had misused the discovery process in failing to abide by a court order requiring Defendant to serve responses to Form Interrogatories – General, Set One; Special Interrogatories, Set One; and Requests for Admissions, Set One, and the court ordered Defendant to pay additional monetary sanctions. (See ROA #256.) Thus, Defendant has willfully committed multiple acts of abuse of the discovery process that have stymied Plaintiff's ability to prepare for trial. Further, the court has imposed lesser sanctions but it does not appear that they have worked to gain Defendant's compliance with her discovery obligations
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		Thus, there is a basis in this case to award terminating sanctions. However, Defendant contends that her new counsel substituted into this case on February 9, 2026, and since then, has cooperated with Plaintiff's Counsel on discovery matters and that Defendant's new Counsel is prepared to produce Defendant for deposition prior to the August 17, 2026 trial date. Based on this fact, along with the harshness of terminating sanctions, the court will order that Defendant appear for her deposition and give Defendant one final chance to comply with the Civil Discovery Act and the court's order. Nonetheless, the trial date is drawing near and if Defendant continues her pattern of delaying and refusing to abide by her discovery obligations, and presents no good cause for her failure to do so, the court will grant terminating sanctions. (See <i>Jerry's Shell v. Equilon Enterprises, LLC, supra</i>, 134 Cal.App.4th at p. 1069 ["A court] is not required to have infinite patience in these situations. A party who is unwilling to, or whose counsel is incapable of, performing the obligations of litigation with diligence should not be surprised when the right to proceed is lost."]; see also <i>Los Defensores, Inc. v. Gomez, supra</i>, 223 Cal.App.4th at p. 390 ["[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction."].) <u>Standard for Monetary Sanctions</u> As the court has previously noted, the standard for imposition of monetary sanctions is lower than for non-monetary sanctions. (See <i>Ellis v. Toshiba America Information Systems, Inc.</i> (2013) 218 Cal.App.4th 853, 878; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1286.) A trial court has "every right to impose a monetary sanction to compel obedience to its lawful orders, or to punish disobedience and disrespect of the court's processes." (<i>20th Century Ins. Co. v. Choong</i> (2000) 79 Cal.App.4th 1274, 1278.)
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		Therefore, the court will award monetary sanctions for Plaintiff's failure to appear for her deposition. Plaintiff also seeks sanctions against Defendant's former Counsel Kevin A. Spainhour and Defendant's current Counsel John R. Ramirez. However, "monetary sanctions against the party's attorney require a finding [that] the 'attorney advis[ed] that conduct.'" (<i>Ghanooni v. Super Shuttle</i> (1993) 20 Cal.App.4th 256, 261, quoting Code Civ. Proc., § 2023, subd. (b)(1); see Code Civ. Proc., § 2023.030, subd. (a) [monetary sanctions may be imposed against "one engaging in the misuse of the discovery process, or <i>any attorney advising that conduct . . .</i>"], italics added.) In this case, there is insufficient evidence that Defendant's former or current Counsel advised the improper conduct. The court will deny the request for monetary sanctions as to Defendant's Counsels. Plaintiff shall give notice of this ruling.
8	Larimore vs. Metagenics LLC 30-2025-01455322	<u>Motion for Stay</u> The court does not have a written tentative ruling in this case. The parties or their counsel shall be ready to address the following issue: 1. Whether <i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736 applies in light of the court's prior ruling that this action is controlled by California Arbitration Act rather than the Federal Arbitration Act. (See ROA #48.) 2. If the Federal Arbitration Act applies in this case, whether only the substantive aspects of the Act apply in the courts of this state. (See (<i>Nixon v. AmeriHome Mortgage Company, LLC</i> (2021) 67 Cal.App.5th 934, 945; <i>Hernandez v. Sohnen Enterprises, Inc.</i> (2024) 102 Cal.App.5th 222, 240.) 3. If the California Arbitration Act applies in this case, whether Civil Procedure Code section 1281.4 mandate a stay in the circumstances of this case.

		4. Whether Civil Procedure Code sections 917.1 to 917.9 mandates a stay of this case pending appeal in the circumstances of this case.
9	Ascencio vs. Akbarzadeh 30-2023-01362017	<u>Motion for Summary Judgment and/or Summary Adjudication</u> The court does not have a written tentative ruling in this case. The parties or their counsel shall be ready to address the following issue: 1. Whether Proposition 22 only addresses labor classifications and labor disputes as they relate to driver benefits, or whether it also affects tort liability for injuries to third parties.